Anuj Kumar Ohja vs State (Through S.H.O) on 5 March, 2024

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3857/2023
ANUJ KUMAR OHJA
Through:

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STATE (THROUGH S.H.O)
Through:

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA

OR

% 05.03.2024

1. The present application under Section 439 of the Cr.P.C. seeks regular bail in case FIR No. 03/2023, under Sections 420 of the IPC, registered at P.S. Cyber Police Station Outer North.

2. As per the status report authored by Insp. Raman Kumar Singh, SHO/PS Cyber Crime, Outer North District, Bawana, Delhi, the case of the prosecution is as under:-

> "Most respectfully it is submitted that, on 31.10.2022 a complaint was received through NCRP vide Acknowledgement no. 20810220067075 lodged by the complainant Sh. Prashant Tomar s/o Sh. Bhupesh Kumar, age-21 yrs, r/o H.No. 165 Sec A 6 Pocket 1 Jagriti Enclave Narela Delhi M. NO 9319822519. Complainant E Mail ID- Prashanttomar9319@gmail.com. Complainant stated that a person namely Anuj Kumar Ojha did fraud to him. He said that he is a director and producer. Who provides work to actors and models. One day he puts a story on This is a digitally signed order.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 05/03/2024 at 22:45:50 his Instagram page which is about Brand Paid shoots. I message him to enquire about that shoot he replied to me that you can do this. Our company made an agreement which you have to sign after that we will start

> our work with you, allow for that and signed the agreement after that he ask for a payment of GST 75000. I made that payment he said that your advance will credit in your account in 2 days after some time he called me back and ask for more money sometimes for profile updating, sometimes for income tax etc. At last, I said to him that I am not able to pay more money then he said that this is your tension not mine. He gets total amount from me is Rs.4,43,142 (four lakh forty three thousand one hundred forty two) all attachment attached in the complaint.
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> After a preliminary enquiry into the matter a case vide FIR No. 03/23 dated 16/1/2023 was registered and investigation taken up. Thereafter technical surveillance has been mounted and trail of accused has been conducted. On 06/02/2023 investigating team got information that the accused Anuj Kumar Ojha will board Tulsi Express and go to Bhopal. Working on this information the team was sent to Bhopal, where he was apprehended while he was trying to escape Indore.
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> He was served Notice U/s 41.1 A Cr.P.C. but he not co- operated in investigation. Thereafter, he was arrested as per due procedure of law.
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> In the investigation done it came to knowledge that accused Anuj Kumar Ojha portray himself as director and producer and used to cheat the youngsters in the name of providing them opportunity of acting in 1. Brand paidsuits,2. Web Series,3. Serials etc. He used to post suggestive post to youngsters from his Instagram Account "anujkumarofficial" and cheat them in the name of paying for signing contract, contract fee, Artist Card, Profile up-dation, GST, Income tax etc. The accused person cheated the complainant in the name of Brand Shoot in the present case tothe tune of Rs.4,43,142/-. The mobile phone recovered from the accused person have been sent to FSL, Rohini, Delhi. The result of the same is awaited.
>
> The accused person cheated the complainant (namely Pooja) in the name of giving work in a serial in the name of Choti This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 05/03/2024 at 22:45:50 Sardarni posing himself as producer in a film production company in the name of ASIS Productions for which a case also got registered vide FIR No. 03/22 at PS Mansa Devi, Panchkula, Haryana."

3. Learned counsel for the applicant submits that the complainant himself had approached the applicant for shooting his reels. It is submitted that a deed was executed between them and the payment, which is subject matter of the FIR, was paid in pursuance of the said agreement. It is pointed out that subsequently complainant himself refused to participate in the reels on account of the fact that his family was opposing the same and therefore, he demanded return of money. It is submitted that since the money was not paid back, the present FIR was registered.

4. It is submitted that the investigation is complete, the chargesheet stands filed. The applicant has been in custody since 07.02.2023 and the trial is likely to take some time.

5. Per contra, learned APP for the State submits that the complainant has been cheated by the present applicant by being dishonestly induced to part with the amount of Rs. 4,43,142/- while promising the complainant to give some shoots, which was not honoured by the applicant. It is also pointed out that the present applicant was also involved in another FIR No. 03/2022 under Sections 406/420, registered at P.S. Mansa Devi, Panchkula, Haryana.

6. Heard learned counsel for the parties and perused the record.

7. Learned counsel for the applicant submits that the money forwarded by the complainant has been utilised by paying different vendors for the purposes of shoot for which the applicant has the records, but on account of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 05/03/2024 at 22:45:51 the fact that he is in judicial custody, he cannot place them on record and will subsequently do so, during the course of trial. It is submitted that the applicant had organized certain shoots which shows his bonafide intention.

8. Be that as it may, investigation in the case has been completed, and the chargesheet stands filed. As per the nominal roll dated 01.02.2024, the applicant has been in judicial custody since 07.02.2023 and as on 01.02.2024, he has already undergone 11 months and 25 days of judicial incarceration.

9. In totality of the facts and circumstances, the present application is allowed. The applicant is directed to be released on bail, on his furnishing a personal bond of Rs. 25,000/- with two sureties of like amount, to the satisfaction of the learned Trial Court/Link Court, further subject to following conditions:

> i. The applicant shall not leave India without prior permission of the learned Trial Court.
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> ii. The applicant shall intimate the learned Trial Court by way of an affidavit and to the Investigating Officer regarding any change in residential address.
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> iii. The applicant shall appear before the learned Trial Court as and when the matter is taken up for hearing.
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> iv. The applicant is directed to give his mobile number to the Investigating Officer and keep it operational at all times. v. The applicant shall not, directly or indirectly, tamper with evidence or try to influence the witness in any manner.

10. The application is allowed and disposed of accordingly.

11. Pending application(s), if any, also stand disposed of.

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12. Needless to state that nothing stated hereinabove is an opinion on the merits of the case.

13. Copy of the order be sent to the concerned Jail Superintendent for necessary information and compliance.

14. Order be uploaded on the website of this court forthwith.

AMIT SHARMA, J MARCH 05, 2024/nk This is a digitally signed order.

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